

MEMORANDUM TO THE FILE

Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A FAR PART 13 ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement (or portion of the requirement to be sole-sourced) is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

Defense Services Organization (DSO), Judge Advocate Division (JAD) has a requirement for a conference space with break out rooms, and audio/visual accommodations for the DSO Worldwide Training event to be held in Phoenix, Arizona.

The Conference Room and Audio-Visual Packages must include:

- **Meeting Spaces:**
 - Provide one large conference room, exclusively available for the event, to accommodate 150 people with crescent-style seating (22 tables at 60" each), including three airwalls to divide the room into four smaller spaces.
 - Provide one conference room to seat 30 people in a classroom style (10 tables at 8'1"x24" each).
 - Provide one conference room to seat 27 people in a classroom style (9 tables at 8'1"x24" each), with one airwall to divide the room into two smaller spaces.
 - Provide one boardroom to seat 8 people with a conference-style table and seating.
 - Ensure all rooms are in reasonable proximity to each other, with adequate lighting, climate control, and accessibility.
- **Audio-Visual & Technical Support:**
 - Provide and set up six projectors (1ft8in x 2ft11in) with stands, six projector screens (9ft2in x 6ft1in), one podium, and all necessary microphones (handheld, lavalier, etc.), remotes, cables, and adapters.
 - Ensure all A/V equipment is fully functional, compatible with standard presentation formats, and available for testing before the event begins.
 - Provide dedicated, on-site A/V technical support for the duration of the event for setup, operation, and immediate troubleshooting.
 - Provide reliable internet and networking services for presenters and A/V systems.
- **Services & Coordination:**
 - Arrange tables, chairs, and staging according to provided layouts, and reconfigure spaces between sessions as required.
 - Provide staff to open and close ballroom partitions on a predetermined schedule.
 - Provide daily janitorial services to ensure cleanliness and trash removal.
 - Designate a staff representative to coordinate with and act upon guidance from the event lead.
- **Location:**
 - The conference venue must have co-located lodging for 150 attendees or be in

walking distance to the DoubleTree Suites by Hilton Phoenix.

- Must be located within a 5-mile radius of Phoenix Sky Harbor International Airport.

Required Source: Folsom Hotel Corporation Inc. (DoubleTree) by Hilton Phoenix

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:

A. ☒ **ONLY ONE RESPONSIBLE SOURCE** *(select all that apply)*:

1. ☐ **RESTRICTIVE RIGHTS.** The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
2. ☐ **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.
3. ☒ **OTHER REASONS.** The DSO Worldwide Training requires a venue that can provide the specific conference facilities outlined in Paragraph II while also meeting several non-negotiable logistical requirements. The selected venue must be available for 13-18 September 2026, located within walking distance to the DoubleTree Suites by Hilton Phoenix, and situated in close proximity to Phoenix Sky Harbor International Airport. These geographical and logistical constraints are critical to ensure timely attendance, reduce transportation costs for the government, and maintain the schedule integrity of a complex, multi-day training event. The DoubleTree Suites By Hilton Phoenix is the only responsible source identified that is capable and available to meet all of these interdependent needs for the required period of performance.
Comprehensive market research confirmed the uniqueness of this venue. Other conference centers and hotels in the Phoenix area were contacted but were either unavailable for the required dates or could not support the necessary number of attendees and the co-located lodging requirement. As the training dates are fixed due to extensive coordination across the Marine Corps Enterprise, no other identified venue can satisfy the DSO's minimum needs. Failure to secure this specific venue would necessitate a cancellation of the event, as no viable alternative exists. This would directly jeopardize the legal readiness, statutory compliance, and quality of legal representation provided to Marines, making this sole source acquisition essential to the DSO's mission.

B. ☐ **BRAND NAME**

Item required must be a brand name, product, or feature of a product, particular to one manufacturer.

C. ☐ **URGENT AND COMPELLING.** The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required: